



DEPARTMENT OF EDUCATION

Colorado State Board of Education

RULES FOR THE VOLUNTARY CREDIT TRANSFER PROCESS FOR JUSTICE ENGAGED YOUTH IN CUSTODY

1 CCR 301-115

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

1.0 STATEMENT OF BASIS AND PURPOSE

The statutory basis for these rules is section 22-108-106, et seq., C.R.S., the Supporting Justice-Engaged Students in Education Act. The purpose of these rules is to establish a voluntary process which ensures that, upon their return to the traditional educational environment, justice-engaged youth have access to quality educational programs and receive credit for any work completed while in custody.

2.0 DEFINITIONS

- 2.1 "Academic Records" means those records, files, documents, and other materials made or maintained by an educational agency or institution which relate to a student's scholastic performance or achievements, as well as any specialized services they receive.
- 2.2 "Credit" means any formal merit applied toward graduation or school continuation that a local education provider awards for the satisfactory completion of course requirements within the parameters of the academic calendar. Local education providers determine how credits are defined based on local graduation requirements.
- 2.3 "Custody" means, but is not limited to, a justice-engaged student's time spent in a facility operated by the department of human services, facility school, psychiatric facility, or day treatment center. This does not include a student whose placement is solely based on the determination of an IEP team pursuant to the Individuals with Disabilities Education Act.
- 2.4 "Department" means the department of education created and existing pursuant to section 24-1-115, C.R.S.
- 2.5 "Facility" means any facility operated by the Department of Human Services, a facility school as defined by section 22-2-4-2(1), C.R.S., psychiatric facility, or a day treatment center.
- 2.6 "Justice-engaged student" means a student who is involved in the criminal justice system in any capacity, including, but not limited to, adjudication, probation, ticketing, detention, diversion, commitment, or community supervision.
- 2.7 "Local education provider" means a school district created pursuant to article 30 of title 22, C.R.S., a board of cooperative services, a charter school authorized by a school district pursuant to part 1 of article 30.5 of title 22, C.R.S., or an institute charter school authorized by the state charter school institute pursuant to part 5 of article 30.5 of title 22, C.R.S.
- 2.8 "Traditional Educational Environment" means a school operated by a local education agency or the Charter School Institute that is not a facility or detention center. A traditional educational environment may include alternative education campuses or online schools.

3.0 VOLUNTARY CREDIT TRANSFER PROCESS

- 3.1 In order to ensure that students transferring into or returning to a Traditional Educational Environment from any facility or other form of state custody can continue their academic progress, local education providers are encouraged, but not required, to adhere to the credit transfer process outlined below.
- 3.2 Once a local education provider is informed that a student is newly enrolling or returning for enrollment from a facility or other form of state custody, the local education provider will:
- 3.2 (1) Within 10 business days of contact, both: request academic records from the previous facility, if known and available, from the time the student was in attendance; and request academic records from any previous local education provider, if different from the current local education provider. Disclosures of academic records in response to a request under these rules must be conducted in compliance with all applicable state and federal laws, including the Family Educational Rights and Privacy Act, 20 U.S.C. § 1232g; 34 C.F.R. Part 99.”
- 3.3 After receiving academic records or other requested information, the local education provider shall:
- 3.3 (1) Review all academic records provided by a facility or previous local education provider to identify where they align with the local education provider’s academic courses.
- 3.3 (2) Identify where credit or partial credit can be awarded for work completed.
- 3.3 (3) Identify course placements that are based on student academic records, progress, and any previous diagnostic or summative assessments as applicable.
- 3.3 (4) Identify where coursework can be recognized within courses.
- 3.3 (5) If applicable, determine whether students need specialized services and what, if any, required services are needed based on a students’ Individualized Education Program (IEP), 504 plan, or Advanced Learning Plan (ALP).
- 3.4 After a local education provider has reviewed the student’s records and evaluated the items above, the local education providers will:
- 3.4 (1) Notify a student and family of placement and/or course schedule, and any credits or partial credits awarded and rationale for this.
- 3.4 (2) Ensure that previous academic records, academic progress, credit and partial credit are incorporated into a student’s Individual Career and Academic Plan (ICAP) including how many credits count towards graduation requirements.
- 3.4 (3) Share the local education provider’s process for updating a student’s ICAP.
- 3.4 (4) Share the local education provider’s services and course opportunities that support student’s academic progress and growth.

4.0 SUPPORT PROVIDED BY DEPARTMENT OF EDUCATION

- 4.1 The department must coordinate with the Division of Youth Services in the Colorado Department of Human Services to develop the guidance required by section 22-108-104, C.R.S. This guidance must incorporate best practices for addressing credit transfer and recognition of work completed.

- 4.2 The department must publish this guidance on its website for local education providers to use in developing and implementing their credit transfer process.
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Editor's Notes

History

New rule eff. 10/15/2025.